

Appointment Letter

Ref No.: PH20240703120605427/EMP-05161

Date: 03-07-2024

To Devang
Pune Corporate

Subject: Appointment Letter

Dear Devang,

We are delighted to hereby appointment you as **Associate Engineer** with Ntex Transportation Services Private Limited (herein referred to as "ElasticRun/Company"). Your base location shall be **Pune Corporate** effective from **01-07-2024**.

As per the terms and conditions outlined in your Offer Letter, your gross annual compensation/CTC will be **Rs. 800000/-**. The breakup of your salary and the benefits shall continue to remain as provided in your Offer Letter. The same has been reiterated under Annexure II of this Appointment Letter. All the key terms and conditions of your engagement with ElasticRun shall continue to remain the same as mentioned in the Offer Letter. Further, as stated in the Offer Letter the detailed terms and conditions of your appointment are provided herein. Refer Annexure I to this Appointment Letter for the same.

Your appointment is subject to successful completion of your background verification failing which this appointment shall stand null and void, resulting in immediate terminations of employment.

During your entire tenure with ElasticRun, you shall ensure that you are aware and updated with all the Company policies and comply with the same in letter and spirit.

We look forward to your valuable contributions and wish you all the very best for a rewarding career with ElasticRun.

Welcome to the ElasticRun family!!

For and on behalf of

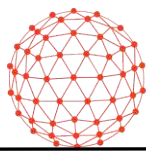
Ntex Transportation Services Private Limited

Authorized Signatory

NTEx Transportation Services Pvt Ltd.

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Annexure I

Terms and conditions of employment applicable to your appointment

1. Name of Employee:

Devang Gajanan Manjramkar

2. Date of Joining:

The effective date of your joining ElasticRun is **01-07-2024**.

3. Position and Reporting Structure:

3.1 You will perform the role of **Associate Engineer** and will be reporting to **D Sujith Kumar - EMP-02628** once you join. ElasticRun has the sole discretion to change your position, reporting line, base location, reporting location, responsibilities etc. as per business needs.

4. Probation:

4.1. You will be on probation for a period of six (6) months or such additional period as the Company may in its discretion consider necessary. During the probation period, you or ElasticRun may end your employment by providing a 30 days' notice.

5. Compensation:

5.1 Your "Annual Gross Compensation"/ "CTC" will be **Rs. 800000/-** as defined in detail in the Annexure II.

You will be covered under ElasticRun's insurance policies as per the information shared in the offer. The policies and coverage are subject to revision from time to time at the discretion of the Company.

6. Full-Time Employment:

6.1. You have been appointed as a full-time employee of ElasticRun since your date of joining, and you shall devote yourself exclusively to the business and interest of the ElasticRun. You will not take up any other trade, business, or occupation during your employment with ElasticRun, without prior permission in writing from Chief Human Resources Officer of the Company.

7. Annual Appraisal:

7.1. Your appraisal shall be subject to the performance management policy of ElasticRun read with other applicable policies of ElasticRun as may be applicable to employees from time to time. ElasticRun shall be entitled to modify and/or revise the performance management policy and any other policy of ElasticRun as it deems. The revised policies shall be applicable to ElasticRun. ElasticRun follows the performance review cycle starting 1st April to 31st March. If your joining date is on or before 30th September of any given year, you shall be eligible for a performance review in the immediate appraisal cycle, else you will be eligible in the subsequent year's appraisal cycle for a performance review.

8. Salary Revision:

8.1. Your salary will be reviewed on annual basis without commitment to increase, subject the then applicable Company policies. Salary revisions are discretionary and will be subject to, and on basis of individual and/or Company performance and results and other contributing factors as per the Company Policy.

9. Statutory and other deductions:

9.1. Your salary will be paid monthly on or around the last working day of each month and is subject to applicable taxes, duties, cesses, and other applicable withholdings including but not limited to professional tax, income tax, provident fund, ESIC etc. All tax liabilities arising out of your entire remuneration package, present or future, shall be borne solely by you. Your salary and any allowances will accrue on a daily basis and will be paid pro rata if you are employed for part of a month. The Company shall also have the right to set off from your salary any amount that is recoverable from you.

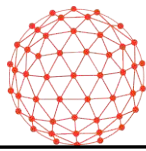
10. Expenses:

10.1. You will be reimbursed authorized expenses that you incur on ElasticRun business and towards local business conveyance, stay etc. as per ElasticRun policy. A guiding principle in citing such expenses is that you should neither benefit nor lose financially owing to any reasonable expenses incurred on behalf of ElasticRun. Authorization of Business expenses will be as per prevailing Company policy.

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11. Duties:

11.1. During your employment with the Company, you confirm that you will:

- a. Act in a manner consistent with and which supports the interest of the Company.
- b. Devote the whole of your working time and attention to the business of the Company.
- c. Diligently and faithfully perform such duties and exercise such powers and functions as may reasonably be assigned to you by the Company in relation to its business and to the best of your ability and with integrity, due skill, care, and diligence.
- d. Use your best efforts to promote and protect the interests of the Company and not do anything to harm those interests.
- e. Comply with all reasonable requests, instructions and regulations given by the Company and the and promptly provide such explanations, information, and assistance as to your activities in the business of the Company as they may reasonably need.
- f. Neither engage in any activities which would detract you from the proper performance of your duties under the terms of this Appointment Letter, nor (without the prior written consent of the Company) in any capacity including as director, shareholder, principal, consultant, agent, partner or employee engage or be concerned or interested directly or indirectly in any other trade, business or occupation whatsoever provided always that such activities are in compliance with the Company's policies. This paragraph will not prevent you holding it for investment purposes only.
- g. Not engage or be interested in any activities which place you in a position where your interest conflicts improperly with those of the Company, its clients, customers or shareholders.
- h. The Company recognizes that, on occasion, a conflict of interest may arise, which is unavoidable. In such circumstances you must make your line manager and HR aware of the issue immediately. You must not act in relation to the matter, without their written direction or approval; and
- i. Report any actual or proposed unlawful activity or behaviour affecting the Company by you or any other employee, officer, contractor of the Company or any other person to your manager (or, if they are potentially involved in such unlawful activity or behaviour, to your HR Business Partner or a member of your Compliance team) immediately on becoming aware of it.

12. Leave:

12.1. You will be eligible for leaves as per the leave policy of the Company. The Company shall have the right to modify its leave policy from time to time and the same shall be applicable to the employee.

13. Absence without Notice:

13.1. Absence without leave or remaining absent beyond the period of leave originally granted or subsequently extended, shall result in termination of your employment without any notice unless you.

- a. Return to work within 3 days from the commencement of such absence, and
- b. Provide a satisfactory explanation to management regarding such absence.

14. Posting and Transfer:

14.1. Company shall at its absolute discretion, be entitled to:

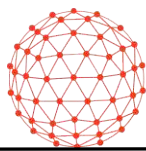
- a. Assign you to carry out such projects and/or duties commensurate with your abilities as the company may deem fit; and/or.
- b. Assign you on a temporary or permanent basis to undertake additional duties and/or different duties commensurate with your abilities within any part or parts of the Company as it will in its absolute discretion determine.
- c. Transfer employment and its rights and obligations to another company.

14.2. Your services are liable to be transferred, at the sole discretion of management, in such other capacity as the Company may determine, to any department, location, associate concern or subsidiary, at any place in India or abroad, whether existing

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today or which may come up in future. In such case, you will be governed by the terms and conditions of the service applicable at the new placement location.

15. Your place base location is your place of work, however you may need to travel to other locations and offices as reasonably required in the performance of your duties. You confirm that you will travel to such places (both inside and outside India) as the Company may reasonably require from time to time. Should the Company need to permanently change your place of work, you will be given reasonable notice of any such change (acceptable in e-mail/ letter format).

16. Termination of Employment:

16.1. You may terminate your employment with the Company by giving a **30 days'** prior notice or by making payment in lieu of notice. Your services may be terminated by ElasticRun giving a **30 days'** prior notice.

16.2. In the event the termination with notice is at the instance of the employee, ElasticRun at its sole discretion reserves the right to relieve the employee on any date during the notice period by waving the notice period in full or part without paying any amount towards the balance notice period.

16.3. At the sole discretion of the Company your services are liable to be terminated without any notice or salary in lieu thereof in the event of a breach of the terms and conditions of this letter and the annexure thereto, including refusal of transfer or you being involved in violation of any of the ElasticRun's rules, policies, services regulations, code of conduct, or any offence which may or may not be directly connected with the business of the Company and for such act the Company shall not be held liable under any circumstances and provisions.

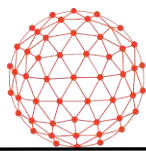
16.4. ElasticRun shall also be entitled to terminate your services with immediate effect in the event any of your actions/inactions bring bad name and/or disrepute to the Company, or for any of the below reasons.

- a. Breach of any of the terms of your Appointment Letter or any other agreement signed by you with the Company.
- b. Breach of the Company code of conduct, policies, rules, regulations, and procedures, as may be applicable from time to time.
- c. Your background verification reveals discrepancies in the information or documents provided by you to the Company during the recruitment process.
- d. The Company finds your performance unsatisfactory during any period of training or in the discharge of duties assigned to you.
- e. Any act or omission by you that may have the effect of injuring the reputation or business of the Company or causing loss to the Company.
- f. Unauthorized absence from work.
- g. Any act of insubordination.
- h. Any act of misconduct.
- i. In case you are charged of any crime or offence involving moral turpitude.
- j. An act of proved dishonesty, misappropriation, breach of trust, confidentiality or fraud committed by you.
- k. If you are found to have engaged in conduct which causes financial harm to or erodes the goodwill and reputation of the Company and/or its Affiliates and/or any of their respective officers or employees.
- l. If you are in a state of health which in the opinion of the Company adversely affects due discharge of your duties under this agreement.
- m. In case of any adverse report coming to light from any inquiries from references indicated by you or from your previous employer, if any.
- n. The activities / behaviour / conduct of yours is considered to be immoral or unethical or detrimental to the interest of the Company.

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o. If at any time it is found that you have concealed / suppressed particulars of any declaration, statement or information or have provided inaccurate particulars of information.

p. In case of any other ground on which the Company is so entitled to terminate your services as per the Company's policy or under the applicable law.

16.5. On the termination of your employment for whatever reason you will return to the Company without delay all assets belonging to the Company, correspondence, records, specifications, notes, information, lists, papers relating to its business affairs or dealing which are in your possession or under control.

16.6. Your contractual and normal retirement age is 58 years. On the day you attain that age, your employment shall end automatically without any need for either party to serve written notice.

17. Confidentiality:

17.1. During your employment with the Company or at any time afterwards, you must not disclose to any person or make use of any Confidential Information or trade secrets that you have obtained in the course of your employment. This includes information that you have acquired in the course of your employment concerning the business or affairs of the Company or its customers or clients etc. You are required to use your best efforts to prevent any unauthorized publication or disclosure of any such Confidential Information. Exceptions to this are the use of information for the proper performance of your duties under this Appointment Letter, where the Company has given written consent or disclosure is required by law, where the information is already in or comes into the public domain (other than by your unauthorized disclosure).

17.2. During your employment or at any time afterwards, you must not make any copy or record (whether recorded in writing, on computer disc, electronically or otherwise) of any Confidential Information, unless this is required for the proper performance of your duties under this Appointment Letter. Any such information belongs to the Company and must be returned by you either at any time during your employment on the request of the Company and immediately on termination of your employment.

17.3. For the purposes of this Appointment Letter, "Confidential Information" means information concerning the business, affairs, finance, clients or trade connections of the Company, any member of the Company, or any of its customers, clients, suppliers, or agents. This includes but is not limited to:

a. Commercially sensitive information or trade secrets.

b. Corporate and marketing strategy, business development plans, sales reports, and research results.

c. Business methods and processes, technical information and know-how relating to ElasticRun's business and which is not available to the public generally, including inventions, designs, programs, techniques, database systems, formulae, ideas etc.

d. Business contacts, lists or details of clients and suppliers and details of contacts with them, their business, or affairs, including client names and client contact details, financial and personal affairs, and trading history and methodology.

e. Information on employees and the terms and conditions of their employment, details of employee benefits, incentive schemes/plans, salary scales and/or current or anticipated trade union/employee disputes.

f. Information or details of any actual, potential, or threatened litigation, legal action, claim, dispute or arbitration against ElasticRun or its member or any current or former director, officer or employee in such capacity and any information in respect of provisions for any such action.

g. Budgets, management accounts, trading statements and other financial reports.

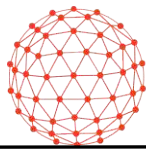
h. any other information which the Company or any of its employees or consultants has identified (orally, in writing, or by its or their actions) as being secret or confidential in nature or which would reasonably be considered confidential.

17.4. You shall not use any confidential information that came to your knowledge during your previous employment/s while working with the Company. You agree to indemnify the Company against any action that the Company may face on account of your actions in breach of your obligations to your previous employer/s.

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18. Intellectual Property:

18.1. For the purposes of this paragraph:

"Intellectual Property Rights" means (i) copyright and related rights, patents, know-how, confidential information, database rights, Inventions and rights in trademarks and designs (whether registered or unregistered), (ii) applications for registration and the right to apply for registration, for any of the same, and (iii) all other intellectual property rights and equivalent or similar forms of protection existing anywhere in the world.

"Invention" means any invention, idea, discovery, development, improvement, or innovation made, whether or not patentable or capable of registration, and whether or not recorded in any medium; and

"Works" means all documents, materials, software, photographic or graphic works of any type, and other materials in any medium or format which are created or developed, or are in the process of being created or developed, or used (whether in final form or otherwise) by you or on your behalf or by the Company in the course of your employment with the Company or for the benefit of the Company and which are protected by, contain or relate to any Intellectual Property Rights.

18.2. You will promptly disclose and deliver up to the Company all and any Works conceived or made by you during and in the course of your employment (whether conceived, or made during normal working hours, in your normal place of work, or in conjunction with others, or otherwise). You agree to provide the Company with all originals and copies of all correspondence, documents and other materials in whatever medium or form relating to or concerning the Works and the Intellectual Property Rights they contain.

18.3. You agree that you will only use the Works to perform your obligations under Appointment Letter and that you will not make personal copies of any Works other than for the purposes of your employment with the Company.

18.4. It is understood that all Intellectual Property Rights created by you in the course of your employment shall be "work for hire". You acknowledge that you have and will have at all times while you are employed by the Company, an obligation to further the interests of the undertakings of the Company, and that all Works and Intellectual Property Rights in the Works will automatically, on creation, belong to and vest in the Company absolutely to the fullest extent provided by law.

18.5. To the extent that the Works and Intellectual Property Rights do not vest in the Company automatically, you will hold such Works and Intellectual Property Rights on trust for the benefit of the Company until the Works and Intellectual Property Rights vest absolutely in the Company.

18.6. You confirm that you will immediately, upon request and at the Company's expense, provide all such documents and assistance as may be necessary to vest the Works and Intellectual Property Rights in the Works in the Company, to enable the Company to enjoy the full benefit of the Intellectual Property Rights, and to enable the Company to enforce its Intellectual Property Rights against third parties or defend claims brought against the Company in relation to any Intellectual Property Rights.

18.7. By accepting this Appointment Letter, you accept and confirm to assign to the Company (as specified by the Company) all current and future Intellectual Property Rights in the Works and any other proprietary rights capable of assignment by way of present assignment of future rights for the full term of such rights. You agree that such assignment shall be perpetual, worldwide and royalty free. You also agree that notwithstanding the provisions of Section 19(4) of the Copyright Act, 1957, such assignment in so far as it relates to copyrightable material shall not lapse nor the rights transferred therein revert to the Employee, even if the Company does not exercise the rights under the assignment within a period of one year from the date of assignment. You acknowledge and agree that you shall waive any right to and shall not raise any objection or claims to the Copyright Board with respect to the assignment, pursuant to Section 19A of the Copyright Act, 1957.

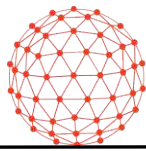
18.8. You unconditionally and irrevocably waive your moral rights in relation to existing and future Works, including your right to be identified as the author of the Works and not to have the Works subject to derogatory treatment. You acknowledge that, except as may be expressly provided by law, no further remuneration or compensation other than that provided for under this Appointment Letter is or may become due to you.

18.9. When this Appointment Letter expires or terminates, for whatever reason, you will immediately deliver up to the Company all Works in your possession or under your control, and under no circumstances may any Works be retained by you except with the prior written consent of the Company.

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18.10. Without prejudice to any specific legal rights which you may otherwise have, you acknowledge that no further remuneration or compensation other than that expressly provided for in this Appointment Letter will become due to you in respect of your compliance with this section of the Appointment Letter.

19. Non-compete requirements:

19.1. You agree to not pursue employment or business alliance with any organization that is in the direct or indirect competition of the Company up to 1 year from your separation from the Company. This will include companies engaged in any activity or business which is competitive with or similar to any activity or business of the Company or activity or business the Company is developing or proposes to develop. You agree to not divulge Company's trade secrets with such organizations during and after your employment termination with the Company. The Company reserves the right of civil and criminal proceedings in case of violation of this clause.

20. Non-Solicitation:

20.1. During the Employment Period and for a period of six months after any termination of employment hereunder for any reason, Employee will not, directly or indirectly, (i) induce or attempt to induce any employee of the Company to leave the employment of the Company; (ii) in any way interfere with the relationships between the Company and any such employee of the Company; (iii) employ or otherwise engage as an employee, independent contractor or otherwise any such employee of the Company; or (iv) induce or attempt to induce any customer, supplier, licensee or other person or entity that has done business with the Company within twenty-four (24) months of Employee's last day of employment to cease doing business with the Company or in any way interfere with the relationship between any such customer, supplier, licensee or other business entity and the Company.

20.2. You shall not entice away or endeavor to entice away from the Company any employee/employees employed with the Company. It is hereby agreed that the prohibition and restriction contained in this clause is reasonable in the circumstances and is necessary to protect the business of the Company.

20.3. You shall not solicit business from, or engage in business with, any current customer or supplier or agent of the Company in India or elsewhere, whom you may have met and dealt with during the period of employment with the Company for any purpose.

20.4. You shall not hire any employees of the Company directly or indirectly or through any other entity or agency or third party with whom you may be associated in any capacity, whether as an employee or in any other capacity whatsoever.

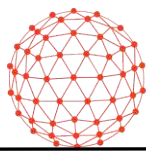
20.5. You shall not commit any acts or commission which may cause prejudice to the Company and / or its affiliates or their business and shall not directly or indirectly attempt to solicit or in any other way disturb or service or any person, firm or corporation which is in a business relationship with the Company or its Affiliates or is a competitor of the Company or its Affiliates and shall not do anything which may tarnish the image of the Company in the eyes of the public.

21. Background Verification:

21.1. This employment is being offered to you upon the understanding and is conditional upon:

- a. The credentials, testimonials and particulars submitted are correct and accurate.
- b. Satisfactory completion of your pre-employment procedures as per your Offer Letter.

21.2. If at any time, it should emerge that the particulars furnished by you are false and/or incorrect or any material or relevant information were suppressed or concealed or any false or forged documents were submitted, in the sole opinion of the Company, then notwithstanding the acceptance of the employment by you, the employment will be considered as ineffective and irregular and would be liable to be terminated by the Company, forthwith without notice and without payment of any compensation whatsoever. Further your appointment will be deemed as void ab initio.



22. Additional Terms:

22.1. No omission to exercise or delay in exercising any right, power or remedy of the Company under this Employment Letter will constitute a waiver of that right, power or remedy.

22.2. During your employment the Company may at its discretion require that you undergo screening, including for criminal record, sanctions list and/or credit reference checks from time to time.

22.3. You acknowledge that in accepting this Appointment Letter you have not relied on any representation or undertaking by the Company whether oral or in writing, except as expressly incorporated into this Appointment Letter.

22.4. You consent to the Company monitoring your use of all Company resources and its communication and electronic equipment (including without limitation the telephone, internet, blackberry, software applications and email systems) and information stored on the Company's computer equipment, as described in your local acceptable use policy in accordance with the ElasticRun's procedure and / or guidance on electronic communications. All applicable policies can be found on the company's intranet portal.

22.5. If your employment is terminated at any time by reason of any reconstruction or amalgamation of the Company whether by winding up or otherwise, and you are offered employment with any concern or undertaking involved in or resulting from the reconstruction or amalgamation on terms which (considered in their entirety) are no less favorable to any material extent than the terms of this Appointment Letter, you shall have no claim against the Company or any such undertaking arising out of or connected with the termination.

22.6. You will be required to accept this Appointment Letter electronically. Such electronic acceptance of the Appointment Letter shall amount to a valid and binding contract between you and the Company. You shall not challenge the validity of the electronic acceptance of the Acceptance or the term of this Appointment.

22.7. You hereby provide your explicit consent to use, process, transfer, your personal data for any lawful purpose in relation to your employment with the Company.

23. Certifications:

23.1. You confirm and certify that:

a. You are not precluded or restricted by any term of any agreement, undertaking or court order or any obligation to any third party from entering this Appointment Letter or undertaking or properly performing any of the duties of your employment with the Company.

b. You will notify the Company of any change in circumstances around the termination of your employment with your previous employer between the date of this Appointment Letter and the Date of Joining.

c. You are not currently, and have never been, the subject of an investigation by any company or body into suspected bribery or corruption activity where either:

i. The investigation was concluded, and your conduct found to amount to misconduct; or

ii. Where the investigation was on-going and did not reach a conclusion because your employment (or engagement) with that company or body was terminated during the investigation (whether by mutual consent or by voluntary termination or otherwise).

d. You are not currently, and have never been, the subject of an investigation into suspected criminal activity involving elements of dishonesty (including theft or fraud) or anti-competitive behaviour.

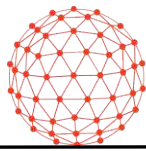
e. You will not during your employment at the Company breach any third party's rights in respect of confidential information and/or intellectual property.

f. Any breach of these certifications will entitle you to immediately terminate your employment.

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24. Governing law:

24.1. This Appointment letter is governed by the laws of the state India. The parties irrevocably submit to the exclusive jurisdiction of the competent courts at Pune.

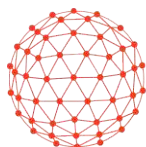
For and on behalf of
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Annexure II Compensation Structure

Pay Component	Monthly Amount	Annual Amount
Total A	60000	720000
Basic	26667	320000
House Rent Allowance	13333	160000
Flexi Benefits	18200	218400
Employer PF	1800	21600
Total B	6667	80000
Performance Incentive	6667	80000
Total	66667	800000

Flexi Benefits: As per your preference, you can plan your flexi benefits component across the following options. Please refer to the policy document for details.

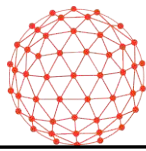
LTA	Maximum - 2 months Basic
Children Education Allowance	Rs.100 per child per month for a maximum of 2 children
Children Hostel Allowance	Rs.300 per child per month for a maximum of 2 children
Mobile and Internet Reimbursement	Maximum Rs.2000 per month
Meal Cards	Maximum Rs.2200 per month
Car Fuel and maintenance	Less than 1600CC: Rs.1800 More than 1600CC: Rs.2400
Driver Allowance	Maximum Rs.900 per month
Books and Periodicals	Maximum Rs.1000 per month
National Pension System (NPS)	5% or 10% of Basic
Employee Car Lease	Upto available Flexi Benefit Balance
Driver Salary	Upto Rs.18,000 per month (For employees opting for Car Lease)
Fuel Expenses	Upto Rs.25,000 per month (For employees opting for Car Lease)

Performance incentive shall be paid as per performance incentive pay policy(ies).

NTEs Transportation Services Pvt Ltd.

2nd Floor, Wonder Cars Arena Building, Sr. No. 165, Near Kokane Chowk, Pimple Saudagar, Pune - 411 027 Ph: (020) 2740 2430, +91 74474 88501 | CIN - U63090PN2014PTC151094 | email - contactus@elastic.run

www.elastic.run



1. Notice Period Buyout:

1.1. In case, you choose to resign from your services or are terminated from your services within 1 year of your joining, then ElasticRun reserves the right to recover 100% amount paid as your Notice period buyout. Further, if you choose to resign from your services or are terminated from your services within 2 years of your joining; the Company reserves the right to recover 25% of the amount paid as your notice period buyout. Notice period buyout will be paid in the subsequent payroll post-completion of 3 months of continuous service. Notice period buyout amount payable will be equivalent to the actual amount recovered against notice period shortfall or final recovery amount mentioned in full and final settlement whichever is lower shared by your current employer. This clause shall apply only if notice period buyout was offered and agreed with you at the offer stage.

2. Relocation Expenses:

2.1. The company will provide one-time reimbursement of relocation expenses within reasonable limits on actual. The cost of packaging, insurance, local taxes, and transportation on actuals shall be borne by the company. For the first 7 days after joining, the employee shall be eligible for hotel accommodation which will be arranged by the Company. The company will reimburse one-time travel expenses for self, and family members (spouse, dependent parents, and dependent children).

3. Gratuity:

3.1. Gratuity will be paid as and when required by the Payment of Gratuity Act, 1972 and as further described by company policies and procedures.

4. Other Terms:

4.1. Professional Tax, PF, ESIC, TDS and other statutory deductions will be deducted as per Government Laws.

Signature: